

1 STATE OF OKLAHOMA

2 2nd Session of the 60th Legislature (2026)

3 HOUSE BILL 3235

By: Rosecrants

6 AS INTRODUCED

7 An Act relating to employment rights; prohibiting
8 certain conduct by employers; specifying employers
9 subject to requirements; providing for filing of
10 claims with the Office of Civil Rights Enforcement;
authorizing civil action; providing for remedies;
prescribing fine amount; providing for codification;
and providing an effective date.

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14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 1361 of Title 25, unless there
17 is created a duplication in numbering, reads as follows:

18 A. It shall be an unlawful employment practice for an employer
19 to terminate, deny, reduce, or alter post-employment benefits for
20 any retiree if:

21 1. The individual's retirement resulted, in whole or in part,
22 from disability-related separation; and

23 2. The change in benefits is causally related to the disability
24 or the circumstances of retirement.

1 B. The provisions of this section shall be applicable to
2 employers covered by the Oklahoma Anti-Discrimination Act.

3 C. Any claim for violation of this act shall be filed through
4 the Office of Civil Rights Enforcement or by the filing of an action
5 in the same manner provided by law for civil cases.

6 D. Whether pursuant to a final decision of the Office of Civil
7 Rights Enforcement or the judgment of a court, remedies for
8 violation may include reinstatement of benefits, damages, and civil
9 penalties up to Fifty Thousand Dollars (\$50,000.00) per violation.

10 SECTION 2. This act shall become effective November 1, 2026.

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